

POSH Policy 2026

NavGurukul is committed to maintaining a working and learning environment free from sexual harassment, exploitation, and intimidation — for every person on campus, regardless of gender, role, or status. This policy exists to protect that commitment in practice.

The POSH Act, 2013 formally applies to the prevention and redressal of sexual harassment of women at the workplace. At NavGurukul, we extend the full process, support mechanisms, and inquiry framework of our Internal Complaints Committee to all individuals — team members and students alike — regardless of gender identity or expression.

Sexual harassment is assessed based on the **impact of the behaviour on the complainant**, not the intent of the respondent.

Note on statutory remedies: Certain remedies under the POSH Act — such as monetary compensation — are legally applicable only where the complainant is a woman as defined under the Act. In all other cases, NavGurukul will ensure appropriate corrective and disciplinary action in line with its internal policies and values.

Scope

This policy covers every **team member** and **student** at NavGurukul across all campuses and functions. It applies to conduct at the workplace, on campus, during travel undertaken for work, and in any digital or virtual space used for NavGurukul activities.

Workplace includes all NavGurukul premises and any place visited by a team member in the course of their work, including transportation provided by the employer.

What Counts as Sexual Harassment

Sexual harassment includes any one or more of the following unwelcome acts or behaviours, whether direct or implied:

- Physical contact, advances, or touching of a sexual nature
- Demands or requests for sexual favours

- Sexually coloured remarks, jokes, or comments
- Sharing or displaying pornographic or sexually offensive material — in person or digitally
- Any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature

Technology-Facilitated Harassment

Sexual harassment also includes conduct that occurs online or through digital platforms:

- Manipulating or morphing images of team members or students to appear sexual, and sharing them without consent
- Voyeurism, sexual extortion, or documenting/broadcasting sexual violence
- Unwanted requests for sexual contact or explicit images, particularly where there is a power imbalance
- Networked or targeted harassment, including showing sexist or pornographic content on virtual meeting platforms

Circumstances That Can Amount to Sexual Harassment

The following, when connected to behaviour of a sexual nature, may also constitute sexual harassment:

- Implied or explicit promise of preferential treatment
- Implied or explicit threat of detrimental treatment
- Threats related to present or future employment status
- Creating an intimidating, offensive, or hostile environment
- Humiliating treatment likely to affect the health or safety of the aggrieved person
- Any other act or behaviour that a reasonable person would consider sexual harassment

The NavGurukul Internal Complaints Committee (IC)

NavGurukul has constituted an Internal Complaints Committee (referred to as the IC) to receive, inquire into, and recommend action on complaints of sexual harassment.

Committee Composition

Role	Name
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Presiding Officer	Aayushi Bhansali, People & Culture
Internal Member	Pihu Gupta, Culture Associate, Admissions
Internal Member	Pooja Mahanor, Snr. Associate, Operations (Igatpuri)
Internal Member	Mubin, Support Team — Residential Program
Internal Member	Rashi Gaba, Head of Finance
External Member	Rukhsaar Dhaliwaal, Lawyer
External Member	Pragya Basera, Board Member, Kat-Katha
External Member	Dr. Neetu Rana, Founder, Neev Mental Health

For any inquiry to proceed, a minimum quorum of **three members including the Presiding Officer** is required.

Any NICC member who holds a direct or indirect personal relationship with either party to a complaint must step down from that inquiry. A member may also be asked to step down at any time upon the request of the complainant.

Making a Complaint

Who Can Complain

Any aggrieved team member or student may make a complaint. Where the aggrieved person is unable to file a complaint themselves due to physical or mental incapacity, a legal heir, friend, coworker, or officer of the National Commission for Women may file on their behalf with written consent.

Any individual who has witnessed or has knowledge of sexual harassment — even if not directly involved — may also come forward to report it.

How to Complain

Complaints must be made in writing to the IC. Where a complainant is unable to write, the Presiding Officer or any IC member will provide all reasonable assistance to put the complaint in writing.

The complaint must be filed within **three months** of the incident, or within three months of the last incident in a series. The IC may extend this by up to a further three months if circumstances prevented timely filing, recorded in writing.

The complaint must include:

- A description of the incident(s)
- Supporting documents, if any
- Names and addresses of witnesses, if applicable

What Happens After Filing

1. The IC provides a copy of the complaint and supporting documents to the respondent within **seven working days**.
 2. The respondent files a reply, along with their list of documents and witnesses, within **ten working days** of receiving the complaint.
 3. The IC initiates the inquiry within **30 days** of receiving the complaint and completes it within **90 days**.
 4. The IC issues its findings report within **ten days** of completing the inquiry.
 5. Action on the findings is taken by the employer within **60 days** of receiving the report.
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The Inquiry Process

The IC conducts its inquiry in accordance with the principles of natural justice — fairness, impartiality, and an equal opportunity for both parties to be heard.

- Neither party may bring a legal practitioner to represent them before the IC.
- Both parties must refrain from any form of threat, intimidation, or influencing of witnesses during the process.
- The IC will ensure confidentiality throughout and protect witnesses from retaliation.
- If either party is absent for three consecutive hearings without sufficient cause, the IC may proceed to an ex-parte decision — after giving 15 days' written notice.

The IC has the powers of a civil court in respect of: summoning and examining persons under oath; requiring production of documents; and any other prescribed matter.

Interim Relief

Upon written request from the aggrieved person, the IC may, during the inquiry, recommend:

- Transfer of the aggrieved person or the respondent to another campus or workplace
- Grant of leave to the aggrieved person of up to three months with pay, in addition to any leave they are otherwise entitled to

Conciliation

Before initiating a formal inquiry, and only at the request of the aggrieved person, the IC may attempt to settle the matter through conciliation. No monetary settlement may form the basis of conciliation. Where a settlement is reached, it is recorded and forwarded to the employer for action — and no further inquiry is conducted.



Outcomes and Action

Finding	What Happens
Allegation not proved	IC recommends no action. Both parties are informed.
Allegation proved	IC recommends the employer treat the conduct as misconduct and take action per service rules. Action is taken within 60 days of the report.
Complainant finds outcome unsatisfactory	The complainant may escalate through legal channels.



False Allegations

NavGurukul takes every complaint seriously. However, there is zero tolerance for complaints made with deliberate malicious intent.

If, after inquiry, the IC concludes that an allegation was made with malicious intent or that false or forged documents were submitted, it may recommend action against the complainant or the relevant witness under service rules. Malicious intent must be established through the same inquiry process — a mere inability to substantiate a complaint does not constitute malice.

This provision is not intended to discourage anyone from coming forward. NavGurukul recognises that many genuine complaints are difficult to prove, and such complaints will not be treated as false.



Confidentiality

All proceedings, findings, and records of the IC are strictly confidential. The identity and contact details of the aggrieved person, respondent, and witnesses must not be disclosed to the public or the media at any time. Breach of confidentiality may attract action under service rules in addition to penalties under the POSH Act.



Annual Reporting

The IC prepares an annual report submitted to senior management before the end of each financial year. The report covers:

- Number of sexual harassment complaints received during the year
 - Number of complaints disposed of
 - Number of cases pending beyond 90 days
 - Number of awareness and sensitisation programmes conducted
 - Nature of action taken by the employer
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Awareness and Training

- All team members and students have access to this policy at all times.
 - Awareness sessions on this policy, the IC, and any updates will be conducted at regular intervals.
 - NavGurukul will display the names and contact details of IC members prominently at all campuses.
 - NavGurukul complies with Section 19 of the POSH Act to ensure a safe working and learning environment for all.
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Policy Changes

NavGurukul may amend this policy as needed, as long as it remains compliant with the POSH Act. Any changes will be communicated to all team members and students. Nothing in this policy overrides any right available to any individual under applicable law.



Declaration

I have carefully reviewed and fully understood the contents of this policy, and I am committed to upholding its principles and abiding by its guidelines.

Name: ____

Designation: ____

Signature: _

Date:

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